

CHAPTER 38.

An Act to make further provision with respect to the cost of medical benefit and to the expenses of the administration of benefits under the Acts relating to National Health Insurance to repeal section two and to amend section twenty-nine of the National Health Insurance Act, 1918, and for purposes connected therewith.

[4th August 1922.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Provision as
to cost of
medical
benefit and
adminis-
tration
expenses.

10 & 11
Geo. 5. c. 10.

1.—(1) There shall be paid in each year out of the funds hereinafter mentioned—

(a) to insurance committees in England, on account of the cost, and the expenses of the administration, of medical benefit, by way of addition to the sums payable under subsection (1) of section seven of the National Health Insurance Act, 1920, and subject to such conditions as may be prescribed, a sum at such yearly rate as may be prescribed, but not exceeding two shillings and four pence halfpenny per year, in respect of each of the total number of the persons in respect of whom payments are made under the said section seven ; and

(b) to the Minister of Health, on account of the expenses incurred by him in connection with the administration of benefits, a sum at such yearly rate as may be prescribed, but not exceeding three halfpence per year, in respect of each of the total number (calculated in the prescribed manner) of the members of the society.

(2) The sums to be paid as aforesaid shall be paid in the case of each approved society out of the benefit fund of the society, and there shall be repaid to the benefit fund out of the Central Fund an amount equal to seven-ninths of one-third of the sums so paid out of the benefit fund.

(3) Subject as hereinafter provided, no part of any sums paid under this section out of the benefit fund of an approved society shall be derived from moneys provided by Parliament:

Provided that there shall be credited to each society out of moneys provided by Parliament in such manner and at such times as may be prescribed by regulations to be made by the National Health Insurance Joint Committee with the approval of the Treasury, such sum (to be calculated in such manner as the regulations may prescribe) as would, by virtue of section three of the National Insurance Act, 1911, be payable out of moneys provided by Parliament if the sums paid by the society under this section, together with interest thereon from the date of payment at the rate prescribed for the purposes of paragraph (c) of subsection (1) of section fifty-six of the National Insurance Act, 1911, were, on the valuation of the society made next after the passing of this Act, applied for the purpose of additional benefits under the National Insurance Act, 1911. 1 & 2 Geo. 5.
c. 55.

(4) In this section the expression "benefit fund" means the fund out of which benefits are payable under Part I. of the National Insurance Act, 1911.

(5) This section shall come into operation on the first day of April, nineteen hundred and twenty-two, and subsection (1) of this section shall continue in force until the thirty-first day of December, nineteen hundred and twenty-three.

2.—(1) Section two of the National Health Insurance Act, 1918 (which provides for the establishment of the Women's Equalisation Fund), shall cease to have effect, and in the exercise of the power conferred by section twenty-eight of the National Insurance Act, 1913, of making regulations with respect to the crediting or variation or cancellation of reserve values, regard shall be had to the provisions of this section. Abolition of
Women's
Equalisation
Fund.
7 & 8 Geo. 5.
c. 62.
3 & 4 Geo. 5.
c. 37.

(2) This section shall be deemed to have had effect as from the first day of January, nineteen hundred and twenty-two:

Provided that nothing in this section shall render invalid any scheme or regulation duly made before the passing of this Act under the said section two of the

National Health Insurance Act, 1918, and any scheme or regulation so made shall have full effect.

(3) This section shall apply to Northern Ireland.

Application
of part of
sums un-
claimed in
stamp sales
account
towards
cancellation
of arrears.

3.—(1) Such part as the National Health Insurance Joint Committee may direct of the sums which, under section twenty-nine of the National Health Insurance Act, 1918 (which provides for the disposal of sums unclaimed in the stamp sales account) are to be carried to the Central Fund shall, instead of being so carried, be credited to approved societies in accordance with a scheme to be made by the said committee with the approval of the Treasury, and any sums credited under this section to an approved society shall be applied by the society in such manner as the scheme may provide for the purpose of preventing such members of the society as are in arrears from being or continuing to be suspended from benefit.

(2) This section shall continue in force until the thirty-first day of December, nineteen hundred and twenty-two.

Payment
out of
Central
Fund for
health
insurance
purposes in
Northern
Ireland.

4. There shall be paid out of the Central Fund to the Ministry of Labour for Northern Ireland, to be applied for the purposes of National Health Insurance in Northern Ireland in such way as the Parliament of Northern Ireland may direct, such sums as the National Health Insurance Joint Committee may determine, having regard to the sums paid out of the fund under this Act to the benefit funds of approved societies in Great Britain.

Application
to Scotland,
&c.

5.—(1) This Act shall apply to Scotland subject to the following modifications, that is to say, two shillings and nine pence shall be substituted for two shillings and four pence halfpenny, the Scottish Board of Health shall be substituted for the Minister of Health, and two pence halfpenny shall be substituted for three halfpence, and section one of this Act shall have effect as if there were inserted after the word “benefits” in paragraph (b) of subsection (1) thereof the words “and the provision of a medical service for insured persons in such districts of Scotland (other than the Highlands and Islands within the meaning of the Highlands and Islands (Medical Service) Grant Act, 1913) as may be determined by the Scottish Board of Health to be necessitous.”

(2) This Act shall apply to Wales subject to the following modifications, that is to say, two shillings and eleven pence halfpenny shall be substituted for two shillings and four pence halfpenny and two pence shall be substituted for three halfpence.

(3) This Act shall not (except as therein otherwise expressly provided) apply to Ireland.

6. This Act may be cited as the National Health Insurance Act, 1922, and shall be construed as one with the National Health Insurance Acts, 1911 to 1921, and those Acts and this Act may be cited together as the National Health Insurance Acts, 1911 to 1922.

Short title
and con-
struction.

CHAPTER 39.

An Act to make provision against the discharge or escape of oil into navigable waters.

[4th August 1922.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) If any oil is discharged, or allowed to escape whether directly or indirectly, into any waters to which this Act applies from any vessel or from any place on land or from any apparatus used for the purpose of transferring oil from or to any vessel to or from any other vessel (whether a vessel to which this Acts applies or not) or to or from any place, the owner or master of the vessel, from which the oil is discharged or allowed to escape, the occupier of the land, or the person having charge of the apparatus, as the case may be, shall be guilty of an offence and shall, in respect of each such offence, be liable on summary conviction to a fine not exceeding one hundred pounds:

Penalty for
discharge of
oil into
navigable
waters.

Provided that it shall be a good defence to proceedings for an offence under this section to prove—

(a) if the proceedings are against the owner or master of a vessel, that the escape of the oil was